PROCLAMATION

by

HIS EXCELLENCY THE HONOURABLE EMMERSON DAMBUDZO MNANGAGWA, G.C.Z.M., President of Zimbabwe and Commander-in-Chief of the Defence Forces of Zimbabwe.

WHEREAS, in terms of section 50 of the Electoral Act [*Chapter 2:13*], the seat of Member of Parliament for Gutu West became vacant by reason of death of a duly nominated candidate before the poll commenced;

AND WHEREAS it is provided by section 50(1)(a) of the Electoral Act [*Chapter 2:13*], that when a duly nominated candidate for election for a constituency dies before the poll commences, the Chief Elections Officer shall, so far as concerns that constituency, declare that all proceedings relating to that election are void and all proceedings in relation to that election shall be commenced afresh in the same manner as if a vacancy had occurred;

AND WHEREAS it is provided by section 39(2) of the Electoral Act [*Chapter 2:13*], that after the President has been notified in terms of the said section of a vacancy in the membership of National Assembly, he shall issue a proclamation ordering a new election to fill the vacancy in the same manner, *mutatis mutandis*, as is provided in section 38 of the Electoral Act [*Chapter 2:13*] in regard to a general election;

AND WHEREAS, I have been notified of the vacancy which has arisen by reason of the death of a duly nominated candidate for Gutu West Constituency before the poll commenced:

NOW, THEREFORE, under and by virtue of the powers vested in the President as aforesaid, I do, hereby—

(a) order a new election for the constituency of Gutu West; and

(b) fix Tuesday the 10th day of October, 2023, as the date on which the nomination court shall sit, commencing

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at 10 o'clock in the morning, at the Magistrates Court, Masvingo, for the purpose of receiving nominations of candidates for election as a member of the National Assembly constituency for Gutu West; and

(c) fix Saturday the 11th day of November, 2023, as the day on which a poll shall be taken if a poll becomes necessary in terms of section 46(17)(c) of the Electoral Act [*Chapter 2:13*].

Given under my hand and the Public Seal of Zimbabwe at Harare, this 22nd day of September in the year of Our Lord two thousand and twenty-three.

E. D. MNANGAGWA,
President.

By Command of the President.

Supplement to the Zimbabwean Government Gazette Extraordinary dated the 22nd September, 2023.
Printed by the Government Printer, Harare.